

Dr Rich McLean |

Request for reconsideration of determination at Comcare for my legitimate claim for Work Cover and Workers Compensation

This request is required to include:

- Date of determination that I was rejected and I indulge you to reconsider
 - The date I was rejected by Comcare and case manager Amy Delzoppo overseen by Lara Fleming was 07/07/2021
 - My receipt of reconsideration was on 28th of May 2021.
 - I had not responded and required an extension because due to the rejection of my work over by Com care.
 - As a result I was bereft of all prosperity, and squatting with no internet, my family called the crisis assessment team on me, and due to malpractice and financial stressors, I attempted suicide in hospital.
 - This cold rejection of my claim from Comcare with such a non descriptor legislation, led me to such distress then against my will - hospital that I, from the FOI documents from the hospital, was found 'unresponsive' and the attempt was 'fatal'. This needs to be taken in to account when considering my claim.
- Reasons for the request,
 - There are two reasons, one is the reason given by Comcare that I am not an 'employee' of the NDIA.
 - This is despite:
 - Me having a contract with them
 - Needing to follow rules and guidelines
 - That they can hire and fire me
 - That I need to do an audit
 - That I have an employee number
 - That all of my income for two years came from the NDIA

Tuesday, 20 July 2021

- That I accessed most of this with the client in question through PRODA a government agency and website for reimbursement of money.
- That the NDIA - without asking me - during COVID - gave me an advance payment of thousands of dollars - which I would have not received if I were not employed in a sustained way by them and being paid by them.
- I think this all comes down to whether I am in descriptive vernacular am identified by the word 'employee' or 'worker', which are on the vast majority synonymous.
- 1) As stated on the ndiscommission.gov.au/workers official website the definition of a 'worker' which is synonymous with 'employee' is referred to as follows (taken directly from the website-**my emphasis in bold red**).

I am a

Employees of an Australian Government agency or statutory authority

Making a complaint about an NDIS funded service? Contact the NDIS Quality and Safeguards Commission on 1800 035 544

From 1 July 2019 the way we handle complaints has changed

To make a complaint about an NDIS funded service please contact the **NDIS Quality and Safeguards Commission** as they are the regulatory body for NDIS services. You can contact them on 1800 035 544.

We are the claims manager for employees of Australian Government agencies and statutory authorities who submit a claim for workers' compensation

Our role

We are a government regulator, workers' compensation insurer, claims manager and scheme administrator.

Through our role, we work with employees and other workers, employers, service providers and other organisations to:

- minimise the impact of harm in the workplace
- improve recovery at work and return to work
- promote the health benefits of good work.

We collaborate and partner with other schemes and organisations on research and innovative projects that improve outcomes.

Comcare is a part of the Attorney-General and Minister for Industrial Relations, Senator the Hon Michaelia Cash's portfolio.

Comcare's Chief Executive Officer is Sue Weston

Our organisation is structured into six groups:

- Claims Management—General Manager, Aaron Hughes
- Corporate Group—Chief Operating Officer, Vanessa Graham
- Legal—General Manager, Matthew Swainson
- Regulatory Operations—General Manager, Justin Napier
- Scheme Management—General Manager, Michael Duke
- Strategic Partnerships and Engagement—General Manager, Natalie Bekis.

<https://www.comcare.gov.au/about/diversity-program>

Aboriginal people and Torres Strait Islander people

- people with a disability
- people from a diverse cultural and linguistic background
- mature-age people
- people who are lesbian, gay, bisexual, transgender and intersex (LGBTI+).

<https://www.comcare.gov.au/roles/claims-managers>

Responsibilities of claims managers

Claims managers have a responsibility to:

- make accurate and timely decisions on claims
- provide clear reasons for decisions and determinations
- ensure that entitlements for treatment and income support are processed
- ensure treatment meets the principles of the [Clinical Framework for the Delivery of Health Services \(PDF, 1.2 MB\)](#) and provides the best health outcomes.

Who manages the claim

Table 1: Claims management arrangements for employees in the Comcare scheme

For employees of:	The claim is managed by:
Australian Government agencies and statutory authorities	Comcare

**[https://
www.comcare.gov.au/
scheme-legislation/src-
act/guidance](https://www.comcare.gov.au/scheme-legislation/src-act/guidance)**

Employees receiving superannuation benefits and incapacity payments

Guidance to relevant authorities and their claims managers about the meaning of 'received' for the purposes of calculating incapacity payments when an employee has received benefits under a superannuation scheme.

[View web page](#)

- [Scheme guidance – Employees receiving superannuation and incapacity payments](#)

Download

- [Scheme guidance – Employees receiving superannuation and incapacity payments \(PDF, 136.1 KB\)](#)

45 weeks full pay \$1200 a week

<https://www.comcare.gov.au/scheme-legislation/src-act/guidance/specified-diseases-and-employment>

On 3 October 2017 the Minister issued a new legislative instrument declaring a list of specified diseases and employment (deemed diseases list).¹ The new deemed diseases list applies to diseases contracted on or after 1 October 2017.

<https://www.comcare.gov.au/about/forms-publications/documents/publications/scheme-guidance/adjusting-normal-weekly-earnings-under-section-8-10.pdf>

Exited employees Calculating an exited employee's weekly earnings under section 8(10)(b) Section 8(10)(b) of the SRC Act sets out different provisions for capping an employee's NWE if they have exited employment with the Commonwealth or a licensee. Section 8(10)(b)(i) and (ii) require a decision maker to assess what the employee would now be earning had they continued to be employed in the same employment at: > the date of their injury; and > the date their employment ceased.

<https://www.comcare.gov.au/scheme-legislation/src-act/guidance/specified-diseases-and-employment>

Date of effect

The new deemed diseases list applies to claims with a date of injury on or after 1 October 2017.

<https://www.comcare.gov.au/safe-healthy-work/responding-to-an-incident>

Notify us of an incident

An incident is notifiable if it results from the conduct of a business or undertaking, and causes:

- the death of a person
- serious injury or serious illness of a person
- a dangerous incident.
- Fill out an [Incident Notification Online form](#)
- Submit an [Incident Notification form \(PDF, 203.3 KB\)](#) to notify@comcare.gov.au.
- Call us on 1300 366 979. When you notify us by phone, we may ask you to provide the notification in writing within 48 hours. If you call outside [operating hours](#), you can be redirected to the on-call inspector.

<https://www.comcare.gov.au/claims/making-a-claim/workers-compensation>

Workers' compensation claims

For:

Claimants

Advocates

If you have a work-related physical or psychological injury or illness, you may be eligible to receive compensation under the Safety, Rehabilitation and Compensation Act 1988 (SRC Act).

<https://www.comcare.gov.au/claims/making-a-claim/workers-compensation>

Eligibility

Expand all

Employees who are covered

The [Safety, Rehabilitation and Compensation Act 1988](#) (SRC Act) sets out workers' compensation and rehabilitation arrangements for:

- employees of Australian Government agencies and statutory authorities
- employees of organisations who have been granted a [licence to self-insure](#).

Your employer can let you know whether you are covered by the SRC Act or you can contact us directly on 1300 366 979.

**[https://
www.comcare.gov.au/
claims/making-a-claim/
workers-compensation](https://www.comcare.gov.au/claims/making-a-claim/workers-compensation)**

Injury or illness related to work

The Safety, Rehabilitation and Compensation Act 1988 covers injury and illness which is work-related.

This means you can claim compensation if you believe your injury or illness occurred at work or was significantly contributed to, or aggravated by, your work.

Your injury or illness may have occurred at work if it occurred while you were:

- away from work but undertaking work-related business, or
- travelling for work.

The national disability insurance agency (NDIA) is an independent statutory agency

[https://
www.comcare.gov.au/
claims/making-a-claim/
workers-compensation](https://www.comcare.gov.au/claims/making-a-claim/workers-compensation)

Employees of an Australian Government agency or statutory authority

Submitting your claim through our online form is the most efficient way to provide us with your information.

You can also submit a claim by completing the paper worker's compensation claim form. If you are finding it difficult to make a claim with us, contact Comcare on 1300 366 979 and we can assist you to submit your claim.

<https://www.comcare.gov.au/claims/making-a-claim/workers-compensation>

Support and financial assistance

If your claim for compensation is accepted, you may be eligible for support and financial assistance.

Support and financial assistance may include:

- [medical treatment](#) and [rehabilitation services](#)
- [income support](#)
- [attendant care services](#)
- [household services](#)
- [aids, appliances and modifications](#)
- [travel costs](#).

Our role is to implement NDIS

[https://](https://www.comcare.gov.au/claims/assessing-)
[www.comcare.gov.au/](https://www.comcare.gov.au/claims/assessing-)
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www.comcare.gov.au/
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assessed](https://www.comcare.gov.au/claims/assessing-claims/how-claim-assessed)

Relationship of injury or illness to work

Once your claims manager has determined whether your condition is defined as an injury or an ailment under the Safety, Rehabilitation and Compensation Act 1988 (SRC Act), they must decide whether there is a relationship between your condition and your employment.

This involves establishing whether a condition:

- arose out of, or in the course of, your employment (for an injury)
- was contributed to, to a significant degree, by your employment (for a disease).

For a full description of these requirements under the SRC Act, see sections [4](#), [5A](#), [5B](#), [6](#) and [7](#).

Testing for liability

When determining liability, your claims manager applies three tests:

- a person must be an employee for the purpose of the Safety, Rehabilitation and Compensation Act 1988 (SRC Act) ([section 5](#))
- there must be an injury or disease as defined by the SRC Act (sections [4](#), [5A](#), [5B](#), [6](#) and [7](#))
- an injury or disease must result in a loss, either:
 - incapacity for work
 - death, or
 - impairment.

**[https://
www.comcare.gov.au/
claims/assessing-
claims/how-claim-
assessed](https://www.comcare.gov.au/claims/assessing-claims/how-claim-assessed)**

Natural justice

Claims managers must observe the principle of natural justice. This means they must:

- provide opportunity for anyone who will be adversely affected by their decision to be heard
- be impartial or unbiased in any matter to be decide

**[https://
www.comcare.gov.au/
claims/assessing-
claims/how-claim-
assessed](https://www.comcare.gov.au/claims/assessing-claims/how-claim-assessed)**

Onus of proof

Under the Safety, Rehabilitation and Compensation Act 1988 (SRC Act), an employee has no legal onus of proof. This means you do not legally need to 'prove' a case.

However, you do need to satisfy the criteria of the SRC Act for your claim to be accepted.

The claims manager also has a legal right to obtain evidence to determine a claim. This power is provided under sections [57](#), [58](#) and [71](#) of the SRC Act.

<https://www.comcare.gov.au/claims/assessing-claims/how-claim-assessed>

Standard of proof

Standard of proof means the degree of certainty with which contested facts must be established in order to be accepted as proved.

Under the Safety, Rehabilitation and Compensation Act 1988 (SRC Act), the basis for decisions is established on the 'balance of probabilities'. This means claims managers must decide that more likely than not, the fact or facts relied upon existed at the relevant time.

<https://www.comcare.gov.au/claims/assessing-claims/how-claim-assessed>

Case law

Many cases have gone before the courts about interpretation of phrases or words in the Safety, Rehabilitation and Compensation Act 1988 (SRC Act).

The outcomes of these cases set legal precedent and your claims manager considers these, if they are relevant to your claim.

Workers

The NDIS Quality and Safeguards Commission is an independent government body that will work to improve the quality and safety of NDIS supports and services, and strengthen the skills and knowledge of workers, providers and participants across Australia.

The NDIS Commission is now operating in all states and territories.

Who is a worker?

Under the NDIS Commission, a worker is **anyone who is employed or otherwise engaged to provide NDIS supports and services to people with disability**. Workers can be paid or unpaid, and can be people who are **self-employed, employees, contractors, consultants, and volunteers**.

What the NDIS Commission means for workers

Workers will need to **understand and comply with the NDIS Code of Conduct**, which outlines the expected behaviour of workers, **reportable incident requirements**, and any additional **competencies required for their role**.

These obligations are explained in the Worker Orientation Module 'Quality, Safety and You', a 90-minute interactive online course that is now available to assist NDIS workers to better support people with disability.

This free short course helps workers to understand:

- What the NDIS is and why we need it
- The role of the NDIS Quality and Safeguards Commission
- **Worker's responsibilities under the Code of Conduct**
- Worker's roles in supporting people with disability to achieve the vision of the NDIS.

Depending on the type of role or **job** you have, you might need to have an **NDIS Worker Screening Check**.

- Why I disagree with the determination,
- I disagree because of the following reasons:
 - The NDIS Commission, where I am a worker as referred to above, in an independent statutory authority of the government.
 - 1) As stated in the rejection it is either a) to do with my 'diagnosis' or b) because of a legislative act, and just to be clear this has never been determined or identified to this day.
 - 2) In particular, the rejection letter specifically states reference to SRC act in:
 -

- Supporting evidence that supports my request.

Tuesday, 20 July 2021